



Appeal Decision

Site visit made on 2 July 2026

by N Unwin BSc (Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 14th September 2026

Appeal Ref: 6006286

Land to the Rear of White House Farm, Bescar Lane, Bescar L40 9QN

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mrs Nolan against the decision of West Lancashire Borough Council.
 - The application Ref is 2025/0598/PIP.
 - The development proposed is permission in principle for a minimum of 4 dwellings and a maximum of 9 dwellings.
-

Decision

1. The appeal is dismissed.

Applications for costs

2. An application for costs was made by Mrs Nolan against West Lancashire Borough Council. This application is the subject of a separate Decision.

Preliminary Matters

3. During the course of the appeal the revised National Planning Policy Framework (the Framework) was published. The main parties were provided with an opportunity to comment. I have had regard to the 2026 version of the Framework in my decision.
4. The Planning Practice Guidance (PPG) advises that permission in principle is an alternative way of obtaining planning permission for housing-led development. The permission in principle separates the consideration of matters of principle from the technical detail. Planning permission does not exist unless both the permission in principle and the technical details are approved. This appeal relates to the first of these two stages.
5. The scope of the considerations for permission in principle is limited to location, land use and the amount of development.

Main Issues

6. The main issues are:
 - whether the development is in an appropriate location with regard to matters of flood risk;
 - whether the proposal would constitute inappropriate development in the Green Belt having regard to development plan policies and the Framework; and

- the effect of the proposal on the supply of agricultural and peaty soil land.

Reasons

Flood Risk

7. Part of the appeal site is within an area with a 1 in 30, 1 in 100, and 1 in 1000 year risk of surface water flooding. Policy GN3 of the Local Plan says that the Council will ensure development does not result in unacceptable flood risk. Chapter 18 of the Framework echoes this, steering development away from areas of flood risk, ensuring that development will be safe for its lifetime without increasing flood risk elsewhere.
8. Policy F5 of the Framework sets out the Sequential Test which aims to steer new development to areas with the lowest risk of flooding from any source. Where the test applies, development proposals should not be located in areas at risk of flooding where alternative sites, appropriate for the development, are reasonably available in areas with a lower risk of flooding.
9. The Framework goes on to say that the sequential test should be used in areas known to be at risk now or in the future from any form of flooding, except in situations where a site-specific flood risk assessment demonstrates that where the site would be at risk of surface water flooding only, the proposed layout, design, and mitigation measures would ensure that occupiers and users would remain safe from current and future surface water flood risk for the lifetime of the development without increasing flood risk elsewhere.
10. Given part of the appeal site is located within an area at risk of flooding and no site-specific flood risk assessment is before me, the sequential test should be applied. However, it is clear from the evidence before me that the sequential test has not been carried out.
11. The appellant contends that a site layout could be achieved whereby no dwellings or access arrangements would be located within areas identified as being at risk of surface water flooding. Nevertheless, there is nothing before me to demonstrate this. Whilst only a portion of the appeal site is at risk of surface water flooding, this appears to comprise sections of the north-east and south-west, narrowing the area of the appeal site that is not at risk. Further, there are significant areas at risk of surface water flooding adjacent to the appeal site boundary with the Council advising that the whole of the site is at risk of flooding under the climate change scenario. On the information before me, I am not satisfied that no built development, including access or escape routes, would be located on an area that would be at risk of flooding.
12. The appellant refers to appeal decision¹, nevertheless in this case the surrounding land was at risk of surface water flooding, not the appeal site itself. As such, it is not comparable to the appeal before me.
13. I recognise that the proposal is for permission in principle and so full details of the scheme do not need to be provided at this stage. However, the issue of flood risk is fundamental to establishing whether or not the site is a suitable location for residential development. As such, the evidence needs to demonstrate broad

¹ APP/D2320/W/25/3362388

compliance with local and national policy on this matter. For the reasons above, compliance has not been demonstrated.

14. Therefore, I find that the proposed development is not in an appropriate location with regards to matters of flood risk. The proposal would conflict with Policy GN3 of the Local Plan and the associated provisions of the Framework.

Whether the proposal would be inappropriate development in the Green Belt

15. The appeal site lies within the Green Belt. Policy GN1 of the Local Plan requires development within the Green Belt to be assessed against national policy.
16. The Framework sets out that the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open; and that the essential features of Green Belts are their openness and their permanence.
17. Policy GB7 of the Framework sets out exceptions where development in the Green Belt is not inappropriate. The Council contend that the proposal would not meet any of these exceptions within Policy GB7 and the appellant does not dispute this. There is nothing before me indicating I should take an alternative view.
18. The appellant contend that the site constitutes grey belt whereby the development of homes, commercial and other development in the Green Belt should not be regarded as inappropriate where (a) the development would not fundamentally undermine the purposes (taken together) of the remaining Green Belt across the area of the plan; (b) there is a demonstrable unmet need for the type of development proposed; (c) the development would be in a sustainable location, with particular reference to policy TR3 of the Framework; and (d) where applicable the development meets the 'Golden Rules' requirements. This is set out in policy GB7.
19. The Framework defines grey belt land as land in the Green Belt comprising previously developed and/or any other land that, in either case, does not strongly contribute to any of purposes (a), (b), or (d) in policy GB2. There is no dispute between parties that the appeal site does not strongly contribute to these aforementioned purposes, and I see no reason to disagree. As such, the proposed development would utilise grey belt land.
20. In relation to Policy GB7 1.g ii, footnote 41 defines the demonstrable unmet need in relation to developments for the provision of housing as the lack of a five-year supply of deliverable housing sites, or where the Housing Delivery Tests was below 75% of the housing requirement over the previous three years. The Council have confirmed that they are unable to demonstrate a deliverable supply of housing standard at just 1.86 years. As such, there is a considerable shortfall which amounts to a demonstrable unmet need for housing.
21. The Council consider the site to be within a sustainable location, and the proposal would not form major development. Based on the available evidence I see no reason to disagree. Therefore, the proposal would comply with Policy GB7 1.g iii, and Policy GB7 1.g iv would not apply.
22. For the reasons set out above, the site is grey belt land, and the proposed development would meet the requirements of Policy GB7 1.g of the Framework. As such, it would not be inappropriate development within the Green Belt. It would therefore comply with Policy GN1 of the Local Plan which, follows the Framework's approach to development within the Green Belt.

Agricultural and Peaty Soil Land

23. The site forms an open area of land to the rear of 5 Bescar Lane. The Council claim that part of the site forms Grade 1 agricultural land defined within the Framework as the best and most versatile agricultural land. The Council additionally state that part of the appeal site forms peaty soil land and that Natural England consider this an irreplaceable habitat.
24. The site itself forms a strip of land with the built environment adjacent to the majority of the north-east and south-west site boundaries. It is limited in comparison to the scale of the agricultural land and peaty soil land beyond. During my site visit I noted that the site appeared overgrown in places and possessed a different character to the surrounding open agricultural land. The appellant's submission contains aerial photographs demonstrating that the site has contained hard surfacing and been used for the storage of machinery in recent years.
25. Whilst part of it may form Grade 1 agricultural land and peaty soil land, given its limited size, narrow nature, and proximity to the built environment, it would be difficult to utilise the appeal site as productive agricultural land. Further, the former hardstanding indicates that the soil is unlikely to be of a high quality or form peaty soil land.
26. For the above reasons, the proposal would not prejudice the supply of agricultural and peaty soil land and would therefore not conflict with the relevant provisions of Policy EN2 of the Local Plan or the Framework.

Planning Balance and Conclusion

27. The appellant's submissions state that the site is just outside the boundary of the designated Small Rural Village of Scarisbrick/Bescar in the Local Plan. Policy S5 of the Framework relates to the principle of development outside of settlements. However, this policy does not apply to development proposals in the Green Belt, which should instead be determined in accordance with policies HC8, GB6, GB7 and/or GB8 as appropriate.
28. Where development would not be inappropriate in the Green Belt, proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in this Framework. The Council are unable to demonstrate a 5-year housing land supply with the Council's delegating report giving a figure of 1.86 years. Therefore, the proposed four to nine dwellings would make a contribution to the existing housing stock. Nonetheless, given the relatively small number of dwellings that would be provided, I afford this matter moderate weight.
29. The site is within an area at risk of flooding, and I cannot say with any certainty that occupiers would remain safe from flooding for the lifetime of the development without increasing flood risk elsewhere. I afford considerable weight to this matter. Consequently, this would substantially outweigh the benefits of the proposal.
30. For these reasons, the appeal does not succeed.

N Unwin

INSPECTOR